

IN THE COUNTY COURT OF THE TWENTIETH JUDICIAL CIRCUIT
IN AND FOR LEE COUNTY, FLORIDA

Capital One NA
Plaintiff(s),

vs.

Anthony A Gomes
Defendant(s).

CASE NO.: 26-CC-001299

CASE TYPE: CC Monetary
Damages \$8,001 -
\$15,000

JUDGE: Lindsay S. Garza

ORDER SETTING NON-JURY TRIAL AND DOCKET SOUNDING

THE CAUSE having come before the Court upon review of the Court's docket, this Court finds, pursuant to Rule 2.545, Florida Rule of General Practice & Judicial Administration, Rule 1.440, Florida Rules of Civil Procedure, and Florida Supreme Court Administrative Order AOSC 20-23, as amended, this case is ready to be set for a trial period.

It is hereby ORDERED AND ADJUDGED that the instant matter shall be deemed a streamlined civil case and is subject to the below scheduled proceedings and deadlines, which supersede any conflicting deadlines stated in the Court Ordered Case Management Plan:

1. Trial Period

For Lee County	This cause is set for TRIAL during the four week trial period beginning <u>December 15, 2027 at 9:00 A.M. in COURTROOM 3C</u> , Lee County Justice Center, 1700 Monroe Street, Fort Myers, FL 33901, before the undersigned judge. Docket Sounding will be held on <u>December 8, 2026 at 8:30 A.M. VIA ZOOM (ID: 311 329 7498)</u> , Lee County Justice Center Courtroom 3C, 1700 Monroe Street, Fort Myers, FL 33901. The Court will continue this trial if it appears that additional time is required and the other cases set for this trial period are jeopardized. In the event this trial is commenced and it becomes apparent that sufficient time was not requested, a mistrial may be declared and costs assessed against the party causing the over-run.
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2. Pre-trial Events

- A. Exchange of Expert & Lay Witnesses. No later than thirty (30) days prior to the Docket Sounding, counsel and/or parties shall file and exchange a list of the names and addresses of **all** witnesses they in good faith intend to call at trial and include a concise

statement of facts about which the witness will testify or opinion of any expert witness. This is intended to identify those witnesses that will in good faith actually be called. No party shall be permitted to call any witness not so disclosed, without prior permission of the Court, or written stipulation executed by all parties, or if represented, their counsel.

- B. Motions. All dispositive motions, including Motions for Summary Judgment, must be filed at least **ninety (90) days prior** to the Docket Sounding, and shall be set to be heard prior to the Docket Sounding. **ALL** other motions shall be filed prior to the date of the Docket Sounding and set for hearing promptly, or they will be deemed abandoned. Motions not filed and scheduled in compliance with this Order will be heard only upon a showing of good cause.
- C. Discovery. Counsel and pro se parties shall complete all discovery prior to the Docket Sounding. The conduct of discovery subsequent to the Docket Sounding will be allowed only upon stipulation of the parties or upon Order of the Court for good cause. Any discovery allowed subsequent to the Docket Sounding shall not be a cause for delay of the trial of this cause.
- D. Alternative Dispute Resolution.

For Lee County	All parties are required to participate in mediation or other Alternative Dispute Resolution at least thirty (30) days prior to the Docket Sounding.
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- E. Settlement. In the event of settlement at any time prior to trial, Plaintiff or Plaintiff's Counsel shall immediately notify the Court and submit a stipulation for an Order of Dismissal and a Final Disposition form.
- F. Representation and Authority. Each represented party shall be represented at all meetings and hearings required herein by the attorney who will participate in the trial of the cause and who is vested with full authority to make admissions and disclosure of facts, and to bind the client by agreement in respect to all matters pertaining to the trial of this cause.
- G. Continuances. This Court adheres strictly to Rule 2.545(e), Florida Rules of General Practice & Judicial Administration, and Rule 1.460, Florida Rules of Civil Procedure. Accordingly, motions for continuance and stipulations must be in writing and set forth the following:
1. The signature of the party as well as the attorney or a showing of good cause for its omission;
 2. the basis of the need for the continuance, including when the basis became known to the movant;

3. whether the motion is opposed;
4. the action and specific dates for the action that will enable the movant to be ready for trial by the proposed date, including, but not limited to, confirming the specific date any required participants such as third-party witnesses or experts are available;
5. the proposed date by which the case will be ready for trial and whether that date is agreed by all parties.

Any stipulation must be approved or motion heard by the Court by no later than Docket Sounding. Any proposed order on a stipulation or motion to continue must contain the findings required by Rule 1.460(h), Florida Rules of Civil Procedure, including either the new trial period or a case management conference date. **Any Motion not in compliance with this Order will not be heard except upon good cause shown.**

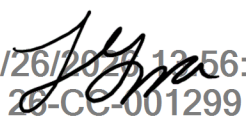
3. **Notice**

Plaintiff, or if represented, Counsel for Plaintiff is directed to review this Order to ensure that it was served to all proper persons at the proper mailing or email addresses and to notify the Court of any discrepancy. The failure to notify the Court immediately of any discrepancy may result in this matter not being heard or tried at the scheduled time.

4. **Sanctions**

The failure to comply with the requirements of this Order may subject the party and/or attorney to appropriate sanctions, including the award of attorneys' fees, fines, striking of pleadings, and/or dismissal of the case.

DONE AND ORDERED in Chambers at Fort Myers, Lee County, Florida.

06/26/2026 13:56:42

26-CC-001299

Lindsay S. Garza, County Court Judge 8ujlld3Y
26-CC-001299 06/26/2026 13:56:42

If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact Brooke Dean, Operations Division Manager, whose office is located at Lee County Justice Center, 1700 Monroe Street, Fort Myers, Florida 33901, and whose telephone number is (239) 533-1771, at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

Electronic Service via State eFile Portal:

JJL PROCESS <returnstoefile@jjlprocess.com>

KEVIN SPINOZZA <legalpleadings@pollackrosen.com>

Kevin John Spinozza <kevins@pollackrosen.com>

CM <molen@ca.cjis20.org>

By U.S. Mail:

Anthony A Gomes 2823 Sw 46Th Ter, Cape Coral, FL 33914